

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant contends the arbitration provisions in the Owner’s Handbook warrants compelling arbitration.

First, defendant does not meet its initial burden that an agreement to arbitrate exists with respect to the Owner’s Handbook as none was attached and there is insufficient evidence one exists.

Even assuming arguendo defendant properly presented the Owner’s Handbook that contains an arbitration agreement, there is insufficient evidence the Owner’s Handbook accompanied the vehicle or that plaintiff knew of the Owner’s Handbook. Additionally, the recent California Supreme Court case found that a manufacturer’s warranties that accompany a vehicle at the time of sale does not permit the manufacturer as a third party to enforce the arbitration provision. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1126.)

Accordingly, defendant’s motion to compel arbitration and stay action is denied.

20. S-CV-0056742 LANE, DAVID v. MITCHELL, CHRISTIE

The motion to disqualify counsel is continued to **Thursday, July 16, 2026, at 8:30 a.m. in Department 3.**

21. S-CV-0057044 IN RE THE PETITION OF TRAINER, BRIAN

Petition for Approval of Minor’s Compromise Claim (Amelia Trainer)

Petitioner, in response to the court’s previous tentative ruling, filed a supplemental declaration that confirms the settlement funds will be placed in an annuity with New York Life. However, the supplemental declaration does not attach the annuity or otherwise discuss its terms. The court cannot therefore determine whether the annuity is in the best interest of the minor. Accordingly, the petition for approval of minor’s compromise claim is continued to **August 20, 2026, at 8:30 a.m. in Department 3.** Petitioner, or their counsel of record, shall file a supplemental

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declaration on or before **August 13, 2026**, that attaches the annuity terms for the court's consideration.

22. T-CV-0002762 SIVEL, KATHLEEN v. LAHONTAN GOLF CLUB

The order to show cause re: selection of arbitrator is dropped from calendar in light of the parties' joint declaration filed with the court on June 11, 2026, that includes all the information required by the court.